

Raj Bahadur Yadav v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 23 March 2023 · WRIT - C No. 9316 of 2023 · **Writ disposed by consent; petitioner relegated to a clause 6.5 representation before the Executive Engineer, with no opinion on merits.**

HEADNOTE

A writ for cancellation of an electrical connection and of a bill of Rs. 2,09,311 dated 23 March 2022, and for restraint of coercive recovery, was disposed of by consent. The petitioner was left to move a representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the concerned Executive Engineer within one week, to be considered expeditiously and strictly in accordance with law. The Court expressed no opinion on the merits.

FACTUAL SUMMARY

Raj Bahadur Yadav asked the Allahabad High Court to direct respondent nos. 2 to 4 to cancel electrical connection Consumer No. HD32582043035 and Account No. 751701323768, to cancel an electricity bill of Rs. 2,09,311 dated 23 March 2022, and to refrain from coercive recovery. At the hearing, counsel for the respondents objected that those reliefs could be pursued by a representation to the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Writ for cancellation of connection and bill relegated to clause 6.5

HOLDING

Where the relief sought is cancellation of an electrical connection and of a disputed bill, and restraint of coercive recovery, the High Court will not examine the merits if a representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the concerned Executive Engineer is available. By consent, and without any opinion on the merits, the writ is disposed of on the observation that an application moved under that clause within one week should be decided expeditiously and strictly in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ seeking cancellation of the connection and the bill, and restraint of recovery, was disposed of because a representation under clause 6.5 was treated as an alternative efficacious remedy. ¶ 1

clause-6.5-representation-executive-engineer The petitioner was left to move an application under clause 6.5 before the concerned Executive Engineer within one week, for a decision strictly in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CONSUMER NO. HD32582043035 AND ACCOUNT NO. 751701323768, AND THE BILL OF RS. 2,09,311 DATED 23 MARCH 2022, WERE LIABLE TO BE CANCELLED, AND WHETHER COERCIVE RECOVERY COULD BE PURSUED

Expressly left open, without any opinion on the merits, for the Executive Engineer on a clause 6.5 application. ¶ 1